UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY

Joshi

(In the space above enter the full name(s) of the plaintiff(s).)

- against -

Joseph B. Edlow,
Markwayne Mullin,
Todd Blanche

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

COMPLAINT

Jury Trial: [ ] Yes [X] No

(check one)

I. Parties in this complaint:

A. List your name, address and telephone number. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff	Name	Joshi
	Street Address	
	County, City	Hudson County, Jersey City
	State & Zip Code	NJ 07310
	Telephone Number	

B. List all defendants. You should state the full name of the defendants, even if that defendant is a government agency, an organization, a corporation, or an individual. Include the address where each defendant can be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1
Name Joseph B. Edlow, Director, USCIS
Street Address 5900 Capital Gateway Drive, Mail Stop 2120
County, City Camp Springs,
State & Zip Code MD 20588-0009

Defendant No. 2
Name Markwayne Mullin, Secretary of Homeland Security
Street Address 2707 Martin Luther King Jr Ave SE
County, City
State & Zip Code Washington, DC 20528

Defendant No. 3
Name Todd Blanche, Attorney General of the United States
Street Address 950 Pennsylvania Avenue, NW,
County, City
State & Zip Code Washington, DC 20530-0001

Defendant No. 4
Name
Street Address
County, City
State & Zip Code

II. Basis for Jurisdiction:

Federal courts are courts of limited jurisdiction. There are four types of cases that can be heard in federal court: 1) Federal Question - Under 28 U.S.C. § 1331, a case involving the United States Constitution or federal laws or treaties is a federal question case; 2) Diversity of Citizenship - Under 28 U.S.C. § 1332, a case in which a citizen of one state sues a citizen of another state and the amount in damages is more than $75,000 is a diversity of citizenship case; 3) U.S. Government Plaintiff; and 4) U.S. Government Defendant.

A. What is the basis for federal court jurisdiction? *(check all that apply)*

[ ] Federal Questions [ ] Diversity of Citizenship

[ ] U.S. Government Plaintiff [X] U.S. Government Defendant

B. If the basis for jurisdiction is Federal Question, what federal Constitutional, statutory or treaty right is at issue? Action to compel adjudication of Form I-140 which are pending for over three years

C. If the basis for jurisdiction is Diversity of Citizenship, what is the state of citizenship of each party?

Plaintiff(s) state(s) of citizenship _____

Defendant(s) state(s) of citizenship _____

III. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. Where did the events giving rise to your claim(s) occur? _____

Plaintiff resides in Jersey City, New Jersey. The delay in adjudication affects Plaintiff in the District of New Jersey, where Plaintiff resides.

B. What date and approximate time did the events giving rise to your claim(s) occur? _____

Plaintiff filed Form I-140 on October 10, 2023 and continues through the present

What happened to you?

C. Facts: _____

USCIS issued Receipt Number XXXXXXX.

The petition has remained pending for more than three years.

No Request for Evidence or denial has been issued.

Copies of the receipt notices are attached.

Who did what?

Defendants have unlawfully withheld and unreasonably delayed agency action under the Administrative Procedu

Was anyone else involved?

Who else saw what happened?

IV. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received.

Difficulty planning employment, travel, finances, or family matters.
Emotional stress and disruption caused by years of administrative delay.

V. Relief:

State what you want the Court to do for you and the amount of monetary compensation, if any, you are seeking, and the basis for such compensation.

Plaintiff asks the Court to order Defendants to adjudicate pending Form I-140 within a reasonable period set by the Court.
Plaintiff does not seek approval of the petitions, only a decision.

I declare under penalty of perjury that the foregoing is true and correct.

Signed this_____ day of_____, 20_____.

Signature of Plaintiff _____

Mailing Address _____

Jersey City NJ 07310

Telephone Number 9293xxxxx

Fax Number *(if you have one)* _____

E-mail Address Joshi@gmail.com

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint.

Signature of Plaintiff: _____